

# Records Retention Schedule

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**Document:** REC-001 **Version:** 2.0 **Effective Date:** January 1, 2025 **Owner:** General Counsel **Applies To:** All Northwind Logistics employees responsible for creating or maintaining business records

## 1. Purpose

This schedule defines how long the Company retains different categories of business records and the manner of disposition at the end of the retention period. Adherence supports compliance with applicable tax, audit, employment, and litigation-hold obligations, and reduces unnecessary storage of stale or sensitive information.

## 2. Scope

The schedule covers all business records of the Company, regardless of medium (paper, electronic, image, voice). It does not cover personal records of employees, transitory communications, or duplicates of officially retained records.

## 3. Retention periods

### 3.1 Financial records

| Record                                           | Retention period                     | Disposition        |
|--------------------------------------------------|--------------------------------------|--------------------|
| General ledger and supporting journals           | 10 years                             | Secure destruction |
| Financial statements (audited)                   | Permanent                            | Archive            |
| Tax returns and supporting documents             | 7 years from filing                  | Secure destruction |
| Accounts payable invoices and POs                | 7 years                              | Secure destruction |
| Accounts receivable invoices                     | 7 years from collection or write-off | Secure destruction |
| Employee expense reports and supporting receipts | 7 years from submission              | Secure destruction |
| Bank statements and reconciliations              | 7 years                              | Secure destruction |

| Record            | Retention period                                   | Disposition        |
|-------------------|----------------------------------------------------|--------------------|
| Payroll registers | 4 years (federal); longer where state law requires | Secure destruction |

### 3.2 Employment records

| Record                            | Retention period                                                 |
|-----------------------------------|------------------------------------------------------------------|
| Personnel files (active employee) | Duration of employment                                           |
| Personnel files (former employee) | 7 years post-termination                                         |
| I-9 employment authorization      | 3 years from hire or 1 year from termination, whichever is later |
| Benefits enrollment               | 6 years                                                          |
| Workers' compensation claims      | 30 years (or per state law)                                      |
| Performance reviews               | 3 years                                                          |
| Training completion records       | 5 years                                                          |

### 3.3 Legal and regulatory records

| Record                             | Retention period                                       |
|------------------------------------|--------------------------------------------------------|
| Executed contracts                 | 7 years post-termination                               |
| Litigation and investigation files | Per litigation hold; otherwise 7 years post-resolution |
| Regulatory filings                 | Permanent                                              |
| Insurance policies                 | 10 years post-policy-period                            |
| Real-estate leases                 | 10 years post-termination                              |

### 3.4 Operational records

| Record                                    | Retention period         |
|-------------------------------------------|--------------------------|
| Shipping records and freight invoices     | 7 years                  |
| Customer orders and order acknowledgments | 7 years                  |
| Vendor records (active vendor)            | Duration of relationship |
| Vendor records (former vendor)            | 7 years post-offboarding |
| Quality / compliance audit reports        | 7 years                  |

### 3.5 Information technology records

| Record                 | Retention period                       |
|------------------------|----------------------------------------|
| System access logs     | 1 year                                 |
| Security incident logs | 3 years (longer if litigation-related) |
| Source code            | Duration of asset lifecycle + 3 years  |
| Backups                | Per Backup Policy (IT-405)             |

## 4. Disposition

4.1. **Secure destruction** means destruction in a manner that renders the record unreadable and unrecoverable. For paper, this means cross-cut shredding or pulping; for electronic media, secure wipe or physical destruction; for cloud-resident data, deletion through the platform's documented data-deletion process plus verification.

4.2. **Archive** means transfer to long-term off-site or cloud archival storage with limited access and documented retention beyond the active-record period.

4.3. Records under a litigation hold are exempt from this schedule until the hold is lifted in writing by Legal. The litigation-hold obligation overrides any retention period in this schedule.

## 5. Implementation

5.1. Department leaders are responsible for ensuring records under their stewardship are maintained per this schedule.

5.2. Annual record review and disposition events should be conducted in Q1 of each year, covering records that exceeded their retention period in the prior year.

5.3. Records Management staff are available to advise on classification and disposition questions and may be reached at [records@northwindlogistics.com](mailto:records@northwindlogistics.com).

## 6. Legal holds

6.1. When litigation, investigation, or regulatory inquiry is reasonably anticipated, Legal will issue a written litigation hold notice to affected custodians. Records covered by the hold must be preserved regardless of this schedule.

6.2. Custodians must acknowledge receipt of litigation hold notices within 5 business days and confirm preservation measures.

## 7. Definitions

- **Record** — Information created, received, or maintained as evidence of a transaction, decision, or activity, in fulfillment of legal obligation or business need.
- **Transitory communications** — Drafts, working notes, and routine emails of no enduring business value.
- **Litigation hold** — A formal directive from Legal suspending normal retention disposal for specified records.

## 8. Document control

| Version | Date       | Author   | Change                                                      |
|---------|------------|----------|-------------------------------------------------------------|
| 1.0     | 2020-01-15 | F. Engel | Initial publication                                         |
| 1.5     | 2022-09-20 | F. Engel | Aligned IT records with new logging platform                |
| 2.0     | 2025-01-01 | F. Engel | Restructure; added cloud-resident data destruction guidance |

**Next scheduled review:** 2027-01-01 **Document owner:** General Counsel / Records Management [records@northwindlogistics.com](mailto:records@northwindlogistics.com) **Approver:** General Counsel **Related documents:** SEC-201 Data Classification, TEP-007 Receipt Requirements (per-record retention noted there is consistent with this schedule)

# Whistleblower and Ethics Reporting Policy

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**Document:** LEG-101 **Version:** 2.4 **Effective Date:** January 1, 2025 **Owner:** General Counsel **Applies To:** All employees, contractors, vendors, and other persons reporting concerns regarding Northwind Logistics

## 1. Purpose

The Company is committed to maintaining the highest standards of ethics, integrity, and legal compliance. This policy establishes the channels through which concerns about suspected violations may be raised and the protections available to those who raise them in good faith.

## 2. Scope

This policy covers concerns about suspected violations of law, regulation, the Company's Code of Conduct, or other Company policies, including but not limited to: financial misconduct, fraud, bribery and corruption, anti-trust violations, sanctions violations, environmental violations, harassment and discrimination, retaliation, and conflicts of interest.

## 3. Reporting channels

Concerns may be raised through any of the following channels:

- 3.1. **Direct manager.** Most concerns are best resolved through direct discussion with one's manager.
- 3.2. **Skip-level manager.** Where direct discussion is not appropriate or has not produced a satisfactory response, the manager's manager.
- 3.3. **Human Resources.** For concerns involving people-related matters, including discrimination, harassment, or workplace conduct.
- 3.4. **General Counsel.** For concerns involving legal or regulatory matters, contract violations, or fiduciary issues.
- 3.5. **Internal Audit.** For concerns involving financial reporting, internal controls, or accounting matters.
- 3.6. **Anonymous Ethics Hotline.** A 24/7 hotline operated by an independent third-party vendor, accessible by phone (1-800-NW-ETHIC) or by web ([ethics.northwindlogistics.com](https://ethics.northwindlogistics.com)). Anonymous reporting is supported.

## **4. Anonymity and confidentiality**

4.1. Reporters may elect to provide their name or to remain anonymous. The Company encourages identified reporting because it permits more thorough investigation and follow-up, but anonymity is fully supported.

4.2. The identity of reporters who provide their name is treated as confidential to the extent practical given the need to investigate. Identity may be disclosed where required by law, by court order, or where it becomes unavoidable in the course of investigation.

## **5. Good-faith standard**

5.1. Reports made in good faith are protected by this policy regardless of whether the underlying concern is ultimately substantiated.

5.2. Knowingly false reports made in bad faith are themselves a violation of this policy and may result in disciplinary action.

## **6. Anti-retaliation**

6.1. The Company strictly prohibits retaliation against any person who, in good faith, makes a report under this policy, participates in an investigation, or refuses to participate in conduct that they reasonably believe violates law, regulation, or Company policy.

6.2. Retaliation includes — but is not limited to — termination, demotion, denial of promotion, material change in working conditions, exclusion from meetings or projects, and informal mistreatment.

6.3. Retaliation may itself be reported under this policy. Reports of retaliation are investigated with the same seriousness as the underlying concern.

## **7. Investigation**

7.1. Reports are reviewed by the Ethics Office (within the Office of the General Counsel) within 5 business days of receipt and assigned to an appropriate investigator.

7.2. Investigations are conducted by individuals independent of the alleged conduct and trained in investigation methodology.

7.3. Investigations may involve interviewing the reporter (where identified), the subject of the report, witnesses, and other relevant parties; reviewing documents and records; and consulting subject-matter experts.

7.4. Investigations are completed as promptly as the facts permit. Typical timelines are 30–60 days; complex matters may take longer.

7.5. To the extent permitted by privacy considerations and applicable law, the reporter (where identified) and the subject are informed of the investigation outcome.

## 8. Whistleblower legal protections

8.1. In the United States, multiple statutes provide additional legal protections for whistleblowers, including the Sarbanes-Oxley Act, the Dodd-Frank Act, the False Claims Act, and various sector-specific laws.

8.2. Nothing in this policy or any Company agreement is intended to limit a reporter's right to communicate concerns to government regulators, including the SEC, OSHA, the Department of Labor, the DOJ, or equivalent state and international authorities. Such communications may be made without prior Company notice or consent.

8.3. Awards or bounties available under whistleblower laws (e.g., SEC whistleblower program) are not affected by this policy.

## 9. Roles

9.1. The General Counsel oversees this policy.

9.2. The Audit Committee of the Board of Directors receives a quarterly summary of reports and investigations, with detail proportionate to the matter's significance.

9.3. The Company contracts with a third-party ethics hotline provider; the contract requires the provider to maintain the confidentiality and anonymity options of the channel.

## 10. Definitions

- **Good faith** — Acting on a reasonable belief in the truth or significance of one's statements, regardless of whether they prove correct.
- **Retaliation** — Adverse action taken against a person because of their good-faith engagement with this policy.
- **Ethics Office** — A function within the Office of the General Counsel responsible for receiving and triaging reports under this policy.

## 11. Document control

| Version | Date       | Author  | Change                                                |
|---------|------------|---------|-------------------------------------------------------|
| 1.0     | 2018-11-01 | R. Cole | Initial publication                                   |
| 2.0     | 2021-12-15 | R. Cole | Restructure post-IPO; added Audit Committee reporting |
| 2.3     | 2023-10-04 | R. Cole | Strengthened anti-retaliation language                |

| Version | Date       | Author    | Change        |
|---------|------------|-----------|---------------|
| 2.4     | 2025-01-01 | M. Quincy | Annual review |

**Next scheduled review:** 2026-01-01 **Document owner:** Ethics Office, Office of the General Counsel  
[ethics@northwindlogistics.com](mailto:ethics@northwindlogistics.com) **Approver:** General Counsel; reviewed annually by Audit Committee

**Related documents:** COC-001 Code of Conduct, HR-104 Workplace Inclusion and Anti-Discrimination Policy

# Customer Privacy Notice

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**Document:** PRIV-101 **Version:** 4.2 **Effective Date:** January 1, 2025 **Owner:** Privacy Office (under General Counsel) **Applies To:** All processing of personal information of Northwind Logistics customers, prospects, and other natural persons whose data we hold

## 1. Purpose

This notice describes how the Company collects, uses, shares, and protects personal information about customers, prospects, and other natural persons in connection with its business operations. It supports the Company's compliance with applicable privacy laws and reflects the privacy expectations of the people whose information we handle.

## 2. Scope

This notice applies to processing of personal information by the Company and its affiliates, in connection with: provision of logistics services, customer support, marketing, payment processing, customer communications, and operational analytics.

This notice does not apply to: processing of employee personal information (governed by the Employee Privacy Notice), processing on behalf of customers as a data processor (governed by the customer's privacy notice and any data processing addendum), and de-identified or aggregate data not capable of identifying an individual.

## 3. Information we collect

### 3.1 Categories of personal information

| Category               | Examples                                           | Source                                         |
|------------------------|----------------------------------------------------|------------------------------------------------|
| Identifiers            | Name, customer ID, email, phone, business address  | Provided by customer; observed in interactions |
| Commercial information | Shipment history, purchase records, contract terms | Generated through service provision            |
| Financial information  | Payment method, billing records                    | Provided by customer; via payment processor    |
| Technical information  | IP address, device type, browser, cookies          | Observed when using our digital properties     |

| Category              | Examples                                                 | Source                                  |
|-----------------------|----------------------------------------------------------|-----------------------------------------|
| Communication content | Emails, chat transcripts, call recordings (where lawful) | Generated through customer interactions |
| Sensory data          | CCTV at facilities receiving customer pickups            | Observed                                |

### 3.2 Collection methods

We collect personal information when customers contact us, request services, place orders, register accounts, attend events, or visit our facilities or digital properties.

### 3.3 Children's data

We do not knowingly collect personal information from children under 16. If we learn that we have done so inadvertently, we delete it promptly.

## 4. How we use information

We use personal information to:

- Provide and improve logistics services
- Communicate with customers about their orders, accounts, and service issues
- Process payments and resolve disputes
- Comply with legal obligations (tax, regulatory, customs)
- Detect and prevent fraud, security incidents, and policy violations
- Conduct analytics to understand and improve customer experience
- Engage in marketing communications, with appropriate consent where required

## 5. Sharing of information

We share personal information only as needed and with appropriate safeguards. Categories of recipients include:

- Service providers (cloud hosting, payment processors, fraud prevention, customer support tooling) under data processing agreements
- Logistics partners and carriers, where the customer's order requires it
- Affiliates, for purposes consistent with this notice
- Authorities, in response to lawful requests or to comply with legal obligations
- Acquirers, in connection with a business transaction (with continued notice obligation)

We do not sell personal information for monetary consideration. We do not share personal information for third-party advertising in a manner that would constitute "sale" or "sharing" under California or other state law without offering an opt-out.

## **6. International transfers**

The Company operates globally. Personal information may be transferred to and processed in countries other than the country of collection. Where required, the Company uses Standard Contractual Clauses, adequacy decisions, or other lawful transfer mechanisms.

## **7. Security**

The Company maintains administrative, technical, and physical safeguards designed to protect personal information against unauthorized access, alteration, disclosure, or destruction. These include access controls, encryption, audit logging, employee training, and incident response procedures. See the Data Classification standard (SEC-201) for related controls.

## **8. Retention**

We retain personal information for as long as necessary for the purposes described in this notice, consistent with the Records Retention Schedule (REC-001) and applicable legal requirements.

## **9. Individual rights**

Depending on the jurisdiction of residence, individuals may have rights to:

- Access the personal information we hold about them
- Correct inaccurate information
- Request deletion (subject to legal exceptions)
- Object to or restrict certain processing
- Receive a portable copy of their information
- Opt out of marketing communications
- Withdraw consent

Requests may be submitted to [privacy@northwindlogistics.com](mailto:privacy@northwindlogistics.com) or via the Privacy Request portal at [privacy.northwindlogistics.com](https://privacy.northwindlogistics.com). We respond within the timelines required by applicable law (typically 30–45 days; extendable with notice in complex cases).

## **10. Verification of requests**

To protect personal information from unauthorized requests, we verify the identity of requestors. Verification methods are proportionate to the sensitivity of the information requested.

## **11. Authorized agents**

Individuals in California and certain other jurisdictions may designate an authorized agent to make requests on their behalf, subject to verification of the agent's authority.

## 12. Cookies and tracking

The Company's digital properties use cookies and similar technologies. The Cookie Notice on our website describes the categories of cookies used, the purposes, the retention period, and how to manage preferences.

## 13. Changes to this notice

We may update this notice as our practices or legal obligations change. Material changes are communicated by posting the updated notice and, where required, by direct notice to affected individuals.

## 14. Contact

Privacy questions, concerns, and rights requests: **Email:** [privacy@northwindlogistics.com](mailto:privacy@northwindlogistics.com) **Mail:** Privacy Office, Northwind Logistics, 200 Spectrum Center Dr, Irvine CA 92618 USA **EU representative:** As required, designated representative under GDPR Art. 27 is identified at [privacy.northwindlogistics.com/eu-representative](https://privacy.northwindlogistics.com/eu-representative)

## 15. Document control

| Version | Date       | Author    | Change                                 |
|---------|------------|-----------|----------------------------------------|
| 1.0     | 2019-12-15 | M. Quincy | Initial publication, CCPA-aligned      |
| 2.0     | 2021-07-01 | M. Quincy | Aligned with GDPR                      |
| 3.0     | 2023-01-15 | M. Quincy | Expanded for CPRA, Colorado, Virginia  |
| 4.0     | 2024-07-01 | M. Quincy | Restructure following EU AI Act review |
| 4.2     | 2025-01-01 | M. Quincy | Annual review                          |

**Next scheduled review:** 2026-01-01 **Document owner:** Privacy Office

[privacy@northwindlogistics.com](mailto:privacy@northwindlogistics.com) **Approver:** General Counsel **Related documents:** SEC-201 Data Classification, REC-001 Records Retention Schedule, EMP-PRIV-101 Employee Privacy Notice

# Intellectual Property and Proprietary Information Policy

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**Document:** LEG-203 **Version:** 2.2 **Effective Date:** January 1, 2025 **Owner:** General Counsel **Applies To:** All Northwind Logistics employees, contractors, and authorized agents

## 1. Purpose

This policy describes the Company's ownership of intellectual property developed in the course of employment, the protection of proprietary information, the use of third-party intellectual property, and the obligations of employees in connection with the Company's IP and that of others.

## 2. Scope

The policy applies to all forms of intellectual property — copyrights, patents, trademarks, trade secrets, and confidential know-how — and to all employees, contractors, and authorized agents of the Company globally.

## 3. Ownership of IP developed during employment

3.1. **Work made for hire.** Subject to applicable law, all intellectual property created by an employee in the course of employment, using Company resources, or related to the Company's business, is the property of the Company.

3.2. **Assignment.** Where the doctrine of "work made for hire" does not assign IP automatically, employees assign such IP to the Company by their employment agreement and acknowledgement of this policy.

3.3. **Exclusions.** IP developed by an employee entirely on their own time, without Company resources, and unrelated to the Company's business or anticipated business, is generally the employee's. Employees in California, Washington, and certain other states have specific statutory protections; the employment agreement reflects these.

## 4. Inventions

4.1. Inventions made during employment are disclosed to the Company via the Invention Disclosure form in the Self-Service Portal.

4.2. The Company's Patent Committee reviews invention disclosures and decides on patent prosecution.

4.3. Inventors named on issued Company patents receive a patent issuance award per the Inventor Recognition Program.

## **5. Open-source software**

5.1. The Company permits and encourages thoughtful use of open-source software in Company products and operations, subject to the Open Source Software Standard (LEG-204).

5.2. Use of open-source software in a Company product requires license review by Legal prior to inclusion.

5.3. Strong copyleft licenses (e.g., GPLv3, AGPL) require additional review and are generally restricted to internal-only use.

5.4. Employee contributions to open-source projects require pre-approval from the employee's manager and Legal, particularly where the contribution involves code developed during employment or relating to the Company's business.

## **6. Trademarks and branding**

6.1. Use of Company names, logos, and trademarks must follow the Brand Guidelines (BRAND-001).

6.2. External communications using Company branding (presentations, customer-facing documents, conference materials) should be reviewed for brand compliance.

6.3. Adoption of new product names or product trademarks requires Legal clearance to avoid infringing third-party rights.

## **7. Trade secrets and proprietary information**

7.1. The Company's trade secrets include — but are not limited to — pricing strategy, customer lists, vendor terms, source code, proprietary algorithms, operational know-how, and unannounced product or facility plans.

7.2. Employees must not disclose, use, or take Company trade secrets outside the scope of their work, whether during employment or after.

7.3. Proprietary information remains the Company's property at the end of employment. Departing employees must return all materials and confirm that they have not retained Company information (including by employee certification).

## **8. Use of third-party IP**

8.1. Use of third-party intellectual property in Company products or operations requires a valid license, public-domain status, or fair-use justification reviewed by Legal.

8.2. Stock images, fonts, music, and similar assets used in Company materials must come from properly licensed sources. Internal stock libraries are available via the brand portal.

8.3. Use of customer information, vendor information, or other third-party information held in confidence is constrained by the relevant agreement; misuse may breach both contract and this policy.

## 9. Generative AI

9.1. Outputs of generative AI tools may incorporate or be derived from third-party IP. Care must be taken to verify the licensing implications of using AI-generated content in Company products.

9.2. Inputs to public AI tools should not include Company Confidential or Restricted data (see SEC-201 and SEC-202).

9.3. The Generative AI Use Standard (LEG-205) provides detailed guidance.

## 10. Reporting

10.1. Suspected unauthorized use of Company IP by third parties should be reported to [ip@northwindlogistics.com](mailto:ip@northwindlogistics.com).

10.2. Notices alleging that the Company is infringing third-party IP should be forwarded immediately to Legal without response by the receiving employee.

## 11. Departing employees

11.1. Departing employees are reminded of their continuing confidentiality and assignment obligations.

11.2. Employees going to work for a competitor or to start a competing business have specific restrictions in their employment agreement (where enforceable under applicable law) and continuing obligations regardless.

11.3. Exit interviews address these obligations explicitly.

## 12. Definitions

- **Work made for hire** — Under U.S. copyright law, a work prepared by an employee within the scope of employment, with the employer as legal author.
- **Trade secret** — Information that derives independent economic value from not being generally known and is the subject of reasonable measures to maintain secrecy.
- **Copyleft** — A licensing model requiring derivative works to be made available under the same license, restricting proprietary use.

### 13. Document control

| Version | Date       | Author    | Change                                          |
|---------|------------|-----------|-------------------------------------------------|
| 1.0     | 2019-08-01 | M. Quincy | Initial publication                             |
| 2.0     | 2022-05-15 | M. Quincy | Restructure; aligned with US/EU patent strategy |
| 2.1     | 2024-06-12 | M. Quincy | Added generative AI clause                      |
| 2.2     | 2025-01-01 | M. Quincy | Annual review                                   |

**Next scheduled review:** 2026-01-01 **Document owner:** General Counsel

[legal@northwindlogistics.com](mailto:legal@northwindlogistics.com) **Approver:** General Counsel **Related documents:** LEG-204 Open Source Software Standard, LEG-205 Generative AI Use Standard, SEC-201 Data Classification, BRAND-001 Brand Guidelines